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IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT

IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	DEFENDANT TYLER JAMES ROBINSON'S OBJECTION TO THE STATE'S MOTION TO AMEND OR CLARIFY THE PRE-TRIAL AND TRIAL PUBLICTY ORDER (Dkt. No. 23) Case No. 251403576 Honorable Tony F. Graf, Jr.
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INTRODUCTION

Defendant, Tyler James Robinson (“Mr. Robinson”), by and through undersigned counsel, hereby files his response to the State’s *Motion to Amend Or Clarify the Pre-Trial and Trial Publicity Order* (hereinafter “the motion to amend”). Dkt. No. 167. As explained below, Mr. Robinson does not agree that the Court’s Protection Order Re: Pre-Trial and Trial Publicity (“Publicity Order”) is overbroad or “vague for voidness” as the State alleges, nor does it improperly balance Mr. Robinson’s unqualified Fifth and Eighth Amendment rights to a fair and reliable capital trial with the qualified First Amendment rights of *potential lay witnesses*, the group of persons the State seems to be most concerned about in the motion to amend.¹ Nor does the Publicity Order, in Mr. Robinson’s view, exceed the Court’s jurisdiction by imposing limitations on the public statements that potential lay witnesses may make about this matter. The motion should be denied.

I. THE PRESENT ORDER IS NARROWLY DIRECTED AT THE ETHICAL DUTIES OF COUNSEL.

The first operative portion of the Publicity Order tracks almost verbatim Rule 3.6(a) of the Utah Rules of Professional Conduct, which limits the statements of attorneys involved in litigation. “A lawyer who is participating or has participated in the investigation or litigation of a matter shall not make an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial

¹ Mr. Robinson uses the term “potential lay witnesses” to describe the group of potential testifying witnesses at any stage of the case, not just at trial, who are: (1) *not* testifying experts retained by a party; (2) *not* law enforcement professionals or other government employees whose testimony is based upon their actions or observations in the course of their employment; and (3) witnesses who do *not* fall into the categories of confidential informants, cooperating witnesses, or unindicted co-conspirators. The term lay witness is not used here to simply differentiate expert and non-expert witnesses. Some courts prefer the use of the term “civilian witnesses” to describe witnesses who do not fall into any of the categories described above.

likelihood of materially prejudicing an adjudicative proceeding in the matter.” Utah R. Prof’l Cond. 3.6(a). The second operative portion then closely tracks the language in Rule 3.8(e) which provides that “the prosecutor in a criminal case shall ... [e]xercise reasonable care to prevent investigators, law enforcement personnel, employees or *other persons assisting or associated with the prosecutor in a criminal case* from making an extrajudicial statement that the prosecutor would be prohibited from making under Rule 3.6.” *Id.* R. 3.8(e) (emphasis added).

The only arguable differences between the Publicity Order and Rule 3.8(e) are: 1) the order applies equally to defense counsel and prosecutors in this proceeding, and not just to prosecutors; and 2) the order identifies a “witness” and a “consultant” as a specific sub-category of “other persons ... associated with the prosecutors in a criminal case,” again applying that prohibition to “other persons” associated with the defense as well. *Id.*

It is also worth noting that while the Publicity Order imposes upon counsel for both parties a duty to take “reasonable care” (the term used in Rule 3.6) to prevent others associated with their respective teams not to make extrajudicial statements which if made by a lawyer would violate Rule 3.6, it does not purport to specifically order *non-attorneys* to limit their speech such that they could be found in contempt for violating the order. The only persons whose action and inaction are subject to judicial supervision under the Publicity Order are the attorneys, and that is because the order merely makes specifically enforceable in this case that which is ethically required of all attorneys in Utah in every case, and of all prosecutors in Utah in every criminal case. *See In the Matter of Discipline of Leavitt*, 2025 UT 46, ¶ 1, ___ P.3d ___ (Rule 3.6 “exists to prevent attorneys who are investigating or litigating a case from making extrajudicial statements that have a substantial likelihood of materially prejudicing the legal proceeding”).

While it is true that the extrajudicial statements of a non-attorney that violate the Publicity Order could result in sanctions against *an attorney* if the attorney failed to take reasonable care to prevent others associated with them in this case from making prohibited extrajudicial statements, the Publicity Order does not purport to subject non-attorneys to the court's supervisory powers.²

The Publicity Order merely places *counsel* on notice that in this case they have a judicially compelled and rule-based duty to take reasonable steps to inform anyone associated with this case, broadly defined, that they should not make extrajudicial statements that may jeopardize Mr. Robinson's right to a fair trial, and that failure to do so may result in sanctions against the attorney and/or the party they represent. Mr. Robinson and his counsel have no concern that Publicity Order interferes with his defense. It is not clear why the State believes the Publicity Order interferes with a constitutionally sound manner of preparing and presenting the prosecution's case.³

² Mr. Robinson also intends to file a motion to modify the order but will do so separately from this response to the State's motion to amend. As his motion will explain, it is Mr. Robinson's view that the order should go further to limit the public statements that may be made by federal, state, and local government officials, some of whom are attorneys and some of whom are not, connected with the state and federal investigations of the conduct alleged against Mr. Robinson, and their agents. His motion will also ask this court to amend the order by explicitly invoking Utah Rule of Professional Conduct 3.8, which established "special responsibilities of a prosecutor" with respect to a broader group of attorneys and their agents. The Publicity Order issued on September 16, 2025, does not invoke Rule 3.8. Additionally, Mr. Robinson does believe that the Publicity Order should also be expanded to specifically limit the extrajudicial statements that may be made by persons associated with the prosecution, including potential lay witnesses, and that could be enforced, if necessary, through contempt proceedings directed at those persons. Mr. Robinson's motion will be filed so that it may be fully briefed and submitted in advance of the hearings scheduled to occur in this matter on January 16 and 30, 2026. Mr. Robinson respectfully suggests that both motions be heard at the same time.

³ To the extent the State's motion purports to assert constitutional rights of lay witnesses or the media, this is entirely inappropriate. *Motion to Amend*, at 4-6. The State has provided no legal authority that permits the State standing to assert the rights of lay witnesses or the media. Any

II. ALTHOUGH THE STATE COMPLAINS OF AN ABSENCE OF EXPRESS JUDICIAL FINDINGS OF FACT THAT WOULD SUPPORT A “PRIOR RESTRAINT”, THE RECORD IS ALREADY REplete WITH EVIDENCE THAT THE VAST AMOUNT OF POTENTIALLY PREJUDICIAL MEDIA COVERAGE OF THE PROSECUTION OF MR. ROBINSON IS LIKELY TO BE KNOWN BY ANY JURY VENIRE SELECTED FOR HIS CAPITAL TRIAL.

The State complains that the Court has failed to make findings of fact to support the Publicity Order but does not propose specific findings that would do so, suggesting that the State’s goal is not to ensure that the Court’s order is valid and enforceable, but is to liberate the State’s attorneys from their ethical duty to caution certain potential lay witnesses against making extrajudicial statements about this matter before they testify.

The Publicity Order, entered on September 16, 2025, just days after Mr. Kirk’s death, Mr. Robinson’s surrender, and the filing of a capital murder charge against him, specifically observes that “[t]his case has generated and is likely to continue to generate significant pre-trial and trial publicity.” Publicity Order, at 1. The order further observes:

[P]ublicity can compromise Defendant Tyler Robinson’s right to due process of law as well as both parties’ rights to a fair and impartial jury trial. Pre-trial publicity is of particular concern because it can taint the prospective jury pool.

effort to do so conflates the State’s role in prosecuting this case and creates potential conflicts of interest.

In addition, the State is incorrect that the Publicity Order creates a prior restraint on the media. Nothing in the Court’s Publicity Order limits what the media may publish about this case. *See, e.g., KUTV, Inc. v. Condor*, 668 P.2d 513, 518 (Utah 1983) (cited in motion to amend at 4). Notably, the United States Supreme Court has also already found that courts need not conduct the “delicate balancing” of the rights to free speech and the right to a fair trial when the sole basis of the claimed infringement is access to interviews by the media. *See Pell v. Procunier*, 417 U.S. 817, 834-35 (1974). *See also Radio Television News Ass’n of Southern California v. U.S. Dist. Court for Cent. Dist. Of California*, 781 F.2d 1443 (9th Cir. 1986) (incidental effect on media ability to interview does not rise to level of First Amendment infringement); *In re Application of Dow Jones & Co., Inc.*, 842 F.2d 603 (2d Cir. 1988) (same).

Id. This sound reasoning is consistent with the Utah Supreme Court Rules Committee comment on Rule 3.6 noting that “[c]riminal jury trials will be most sensitive to extrajudicial speech.”

Utah R. Prof’l Cond. 3.6, Comment 6.

On October 27, 2025, the Court made further findings of fact concerning “the potential for prejudicial pre-trial publicity tainting the jury pool.” Order Granting in Part and Denying in Part Defendant’s Motion to Appeal in Civilian Clothing and Without Restraints, at 5. The Court observed:

The media interest in Mr. Robinson’s trial is arguably unprecedented in the State of Utah. Photographs and visual recordings of Mr. Robinson in jail clothing will likely be shared and disseminated in various public platforms. There is a strong likelihood that a substantial number of potential jurors in Utah County will view these images and may associate Mr. Robinson’s jail clothing with indicia of guilt. The danger of prejudice is compounded by technological advancements that allow the images to be manipulated in ways that do not reflect the truth of court proceedings.

Id.

While the Court’s comments in that order are connected with its conclusion that Mr. Robinson shall, over the State’s objection, be permitted to appear in civilian clothing at every hearing, the arguably unprecedented media interest also creates a risk that extrajudicial statements, and not just images of Mr. Robinson in court, may prejudice his right to a fair and reliable capital proceeding. Any images of Mr. Robinson participating in these proceedings is surely to be accompanied by traditional media and less traditional social media posts containing statements made by individuals who claim to have knowledge about the events surrounding this prosecution or who simply want to use the death of Mr. Kirk and the State’s pursuit of the death of Mr. Robison for secondary gain.

There is additional evidence already in the record of the vast interest in this prosecution by media entities who will no doubt seek to use their investment of time and financial resources to gain access to this proceeding to maximize the extent to which members of the public look to them for information about it. Two groups of media entities have already filed motions seeking notice of any request to seal a document or close a hearing. One group, referring to itself in its motion as “News Media” includes *Deseret News*, Deseret Digital Media, Inc. d/b/a KSL.com, KSL-TV, KSL News Radio, KUTV 2News, KSTU Fox 13, the Utah News Dispatch, and the Utah Headliners Chapter of the Society of Professional Journalists. (Dkt. No. 150). Another group, which refers to itself as “Proposed Media Intervenors” includes The Salt Lake Tribune and one of its reporters, St. George News, The Associated Press, Fox 13 News, Millard County Chronicle Progress, KOAL, KUER-FM, Lehi Free Press, The Park Record; CBS Broadcasting, The New York Times, CNN, Fox News, and the Law and Crime Network. (Dkt. No. 164)

Moreover, each hearing in this matter has been accompanied by a request from a media entity for permission to undertake electronic media coverage, as the docket reflects. Finally, certain media entities have sought to obtain from law enforcement agencies pursuant to GRAMA certain investigative materials. Denials of those requests have led to appeals that are now pending before the Utah Government Records Office.⁴

While none of the media entities identified here or their reports are likely categorized as potential lay witnesses, it is clear that any extrajudicial statements made by potential lay witnesses will be published and republished throughout Utah County, the State of Utah, the

⁴ Mr. Robinson is aware of two such appeals. In one, Government Records Office Appeal No. 2025-150, Scripps News appeals a denial of its request to obtain from the Washington County Sheriff’s Office certain visual images associated with the investigation of the death of Mr. Kirk. In another, Government Records Office Appeal No. 2025-131, CBS News appeals a denial of its request to obtain from the Washington County Sheriff’s Office similar materials.

United States, and beyond. There is little doubt, as the record fully reflects, that, as the Court has already observed, “[t] here is a strong likelihood that a substantial number of potential jurors in Utah County” will be exposed to media coverage of this matter, including any extrajudicial statements made by anyone who claims to know of information, rumors, or theories about the case.

The factual predicate for the Publicity Order requiring counsel to take care to warn potential lay witnesses not to make extrajudicial statements is well established.

III. THE ORDER IS NEITHER VAGUE NOR OVERBROAD.

The State devotes much of its motion to amend to assertions that the order is vague, and therefore void, and that it is overbroad. It is neither. It appears that the State has latched onto the very recent decision of the Arkansas Supreme Court, *Spencer v. State*, 712 S.W.3d 296 (Ark. 2025), which it cites in support of its overbreadth and vagueness arguments, but the gag order at issue in *Spencer* and the order issued by this Court bear no resemblance to each other. *See id.* at 301-02. The “gag order” as the trial court referred to its own order in that case prohibited all public officials from making comments about the case, sealed the entire proceedings, and precluded the defendant’s “family” (a term the Supreme Court referred to as vague) from commenting as well. *Id.* at 303.

If the State asserts that the Publicity Order is unconstitutionally vague or overbroad, then what it is really attacking is Rules 3.6 and 3.8 of the Utah Rules of Professional Conduct since, as pointed out above, the Publicity Order is primarily effectuating a standard of professional conduct in this case that is already imposed upon attorneys in all cases in Utah and upon all prosecutors in criminal cases in Utah.

In the motion to amend, the State asks a number of questions in its motion about how it should operationalize the Court's use of the term "witness." However, this is neither a vague nor overbroad term. It is clear that in a criminal prosecution, a witness is someone who has personal or specialized information that may be presented in court by them, either by way of live testimony or affidavit, or that may be relied upon by another person who presents that information in court. A witness is not, as the State suggests, only those who in the days just before trial are under subpoena. That criterion for the resolution of the question of who is and who is not a witness is both too narrow and would be resolved too late in the proceedings for the court's order to have any meaningful impact on the goal of reducing the risk that extrajudicial statements may prejudice Mr. Robinson's right to a fair trial. The State's duty to inform its potential lay witnesses, and others, exists and must be fulfilled now, and not only in the days just before trial when subpoenas are served.

The Tenth Circuit provides some guidance on how the State should fulfill its obligation under the Publicity Order. That court has ruled that the constitutional balance between the First Amendment rights of a non-attorney participant in a criminal proceeding and a defendant's right to a fair trial are properly balanced where extrajudicial statements present a "reasonable likelihood" of prejudicing a fair trial. *United States v. Tijerina*, 412 F.2d 661, 667 (10th Cir. 1969). This reasonable likelihood standard is actually more protective of a defendant's right to a fair trial than is Utah Rule of Professional Conduct 3.6, which prohibits statements which have a "substantial likelihood of materially prejudicing" a proceeding.⁵

⁵ Mr. Robinson's forthcoming motion will propose that this more protective standard, which the Tenth Circuit has said is constitutionally sound, be applied in this capital prosecution, in lieu of the less protective standard utilized in Rule 3.6 which is not specifically targeted at criminal proceedings and their constitutional underpinnings, let alone capital proceedings.

IV. THE STATE IS FAR MORE ABLE TO IDENTIFY WHO ITS POTENTIAL LAY WITNESSES ARE THAN ITS MOTION SUGGESTS

The motion to amend suggests that the State and its attorneys have no idea who their witnesses would be at any stage of this proceeding, placing them at risk of violating the order or imposing upon them an untenable burden. Given the State's stated desire to convene a preliminary hearing as soon as possible, and its estimate of the time that a preliminary hearing will require, it is difficult to imagine that it does not have a reasonable belief as to who its witnesses may be at that hearing.

Moreover, the State has already provided Mr. Robinson with a vast amount of discovery, much of which identifies potential lay witnesses who saw or heard something that may be admissible at trial. The bare assertion that over 3,000 individuals were present at the event where Mr. Kirk was shot is a gross exaggeration of the witness identification and selection project facing the State's prosecution team. Rules of evidence that preclude the presentation of unnecessarily cumulative evidence or unfairly prejudicial evidence of limited probative value likely rule out 99 percent of those attendees, as the State well knows. *See Utah Rules of Evidence 401, 402, 403.* Should there be a penalty phase of a trial in this case, the list of potential lay witnesses who may testify is also relatively easily constructed, even if it is longer and broader than pre-trial rulings and trial strategy decisions may ultimately dictate.

Overall, the State's burden (like the defense's burden) under the Publicity Order is not unclear or insurmountable, particularly in light of the duty of the trial participants to preserve the integrity of the proceeding and uphold Mr. Robinson's rights attendant to a fair trial and reliable penalty determination.

CONCLUSION

It is unclear if the State's concern is that its attorneys and agents don't have the *ability* to control their potential lay witnesses and that the effort to seek death may somehow be prejudiced by other agendas, or if the State is concerned that its potential lay witnesses, some of whom may be among the highest profile government officials and public pundits in the country, may be frustrated by limitations on their right to both speak extrajudicially about the matter for their own personal benefit, and then participate in the trial as witnesses.

The State's assertion that "public statements by lay witnesses do not present the same concerns as statements by the parties or their team members" is simply false. *See* Motion to Amend, at 4. The context of this case, namely, 1) the public notoriety of the victim, Mr. Kirk, and those close to him, 2) the politicization of his death and the prosecution of Mr. Robinson by persons who occupy a wide range of positions on the political spectrum, and 3) the "unprecedented" media interest in this trial, collectively demonstrate why public statements by potential lay witnesses present no less of a concern than do statements by counsel, their agents, and government officials associated with the investigation and prosecution.

The motion to amend should be denied.

RESPECTFULLY SUBMITTED this 20th day of November, 2025.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/ Michael N. Burt
Michael N. Burt

/s/ Richard G. Novak
Richard G. Novak

/s/ Staci Visser
Staci Visser
Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 20th day of November, 2025, thereby serving all attorneys of record.

/s/ Staci Visser